

## 24STCV20023 24STCV20023

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-08

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C512%2C09%2F08%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F08%2F2026)

Source SHA-256: cc4094d09e293280c3c95f10e07ac026347c587c03b69ac17720850f9a75cf52

Case Number: 24STCV20023 Hearing Date: September 8, 2026 Dept: 512

HEARING DATE: Tues., September 8, 2026

JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bockian,

et al. v. Fusion Learning, Inc., et al. COMP. FILED: 08-08-24

CASE NUMBER: 24STCV20023

NOTICE:

OK

PROCEEDINGS: MOTION

TO COMPEL THIRD PARTY TO PRODUCE BUSINESS RECORDS IN COMPLIANCE WITH DEPOSITION  
SUBPOENA

MOVING PARTY:

Plaintiffs Nicholas Bockian and

Jackson Bockian

RESP. PARTY: Non-Party

Kayla Ngai

COMPEL THIRD PARTY TO PRODUCE BUSINESS  
RECORDS IN COMPLIANCE WITH DEPOSITION SUBPOENA

(CCP §§ 1987.1, 2025.480)

TENTATIVE RULING:

Plaintiffs Nicholas Bockian and  
Jackson Bockian's Motion to Compel Nonparty Kayla Ngai's Compliance with  
Deposition Subpoena for Production of Business Records is CONTINUED to October  
16, 2026 at 9:00 a.m. in Department 512.

The Court orders that Responding party  
provide a supplemental privilege log within 10 days of this order, as follows:

- 1.) A separate entry for each document or redaction—  
not a batch description
- 2.) The document's date
- 3.) The author/sender, by name and  
capacity (e.g., in-house counsel, HR director, outside counsel)
- 4.) All recipients, including everyone  
copied, by name and capacity
- 5.) The document type (email, memo,  
investigation notes, etc.)
- 6.) A subject-matter description specific  
enough to show why the privilege applies, without revealing the privileged  
content.

Parties are to file a  
joint statement no later than 5 court days before the next hearing date  
providing status report on any remaining items raised in the Motion that are in  
dispute.

Moving parties are ordered  
to give notice.

SERVICE:

[X] Proof of  
Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address  
(CCP §§ 1013, 1013a) OK

[X] 16/21 Court  
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed  
on May 7, 2026 [ ]  
Late [ ] None

REPLY: Filed  
on May 11, 2026 [ ]  
Late [ ] None

#### ANALYSIS:

I.  
Background  
& Discussion

On August 8,  
2024, Plaintiffs Nicholas Bockian and Jackson Bockian (“Plaintiffs”) filed the instant action against Defendants Fusion Learning, Inc. (“Fusion Learning”) and Meline Sarkissian (“Sarkissian”) (“Defendants”) and Does 1-50, alleging causes of action for Negligence and Negligent Supervision/Retention. (Compl., p. 1.) The underlying action arises from the following alleged facts: Plaintiffs were students in their senior year of high school at Fusion Learning when they were subjected to mental and emotional abuse and sexual misconduct by a teacher, Kayla Ngai (“Ngai”), at Fusion Learning. (Compl., p. 2.) Sarkissian was head of the school at Fusion Learning during all relevant times. (Compl., pp. 2-3.)

On October 7,  
2024, Defendants filed an Answer.

On March 30,  
2026, Plaintiffs filed the instant Motion to Compel Nonparty Kayla Ngai’s Compliance with Deposition Subpoena for Production of Business Records (the “Motion”).

On May 7, 2026,

Ngai filed an Opposition.

On May 11, 2026,  
Plaintiffs filed a Reply.

On May 20, 2026,  
the Court found the subject requests “to be overbroad, and a privilege log has not been provided. The Court orders defendant to provide to the parties a privilege log by next Tuesday. Counsel is further ordered to meet and confer via zoom by next Friday, regarding the privilege log. Counsel for the defendant is to take the lead to schedule the conference call for next Friday.” (5/20/26 Order.) The Court continued the hearing on the Motion. (5/20/26 Order.)

On June 4, 2026,  
the parties and Court engaged in an Informal Discovery Conference (“IDC”). At the IDC, the parties orally stipulated to continue the hearing date, and the Court found that “counsel have made progress and encourages counsel to continue with meaningful conversation.” (6/4/26 Order.) The Court further ordered that “[i]f counsel have any outstanding issues as to the motion to compel, they are to file a Joint Supplemental Statement (2-3 pages), which is to include the outstanding issues. The Joint Supplemental Statement is to be filed 5 days before 7/23/26. Production of documents is to be produced to plaintiff by 6/18/26.” (6/4/26 Order.)

On July 23,  
2026, the Court granted the parties' stipulation to continue the hearing on the Motion to allow Plaintiffs to complete review of Defendants' amended responses and production and finalize which issues require Court intervention. (7/23/26 Order; 7/17/26 Supp. Statement.)

On September 1,  
2026, the parties filed a Joint Supplemental Statement re the Motion. The Joint Statement states that the status of the discovery dispute is that “Fusion served a fourth privilege log on July 29, 2026. On August 4, 2026, Plaintiffs sent a meet and confer letter identifying every withheld and redacted page by Bates number and requesting a response by August 14, 2026. Plaintiffs have received no response.” (9/1/26 Joint Statement.) Plaintiffs state the outstanding issues regarding the subject discovery are that Defendants and/or Ngai redacted relevant information in their document production, withheld 210 pages of documents, and provided four deficient privilege logs. (9/1/26 Joint

Statement.) Defendants state the redactions, withheld documents, and privilege logs all involve Ngai's privacy rights and thus are proper. (9/1/26 Order.)

"[P]ersonnel records and employment history are within the scope of the protection provided by the state and federal Constitutions." (See *San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097, overruled in part on other grounds.) The California Supreme Court confirmed and "established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.)

Here, the Joint Statement demonstrates Defendants and/or Ngai produced additional documents pursuant to the Court's prior orders as well as four privilege logs regarding the subject requests also pursuant to the Court's prior orders. To the extent Plaintiffs wish to also have a protective order and/or in-camera review of certain material, the Court may not order disclosure of a communication claimed to be privileged to allow a ruling on the claim of privilege. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 739.)

However, when a party or subpoenaed custodian withholds documents on privilege grounds, CCP § 2031.240(b)–(c) requires it to identify the withheld items with particularity, to state the specific privilege invoked, expressly assert any work-product claim, and provide "sufficient factual information for other parties to evaluate the merits" of the claim (Cal. Civ. Proc. Code § 2031.240; See *Catalina Island Yacht Club v. Superior Ct.*, (2015) 242 Cal. App. 4th 1116. Based on the information provided to the Court, and without the benefit of the privilege log, the Court is unable to determine whether the privilege asserted is proper.

For these reasons, the Court orders that Responding party provide a supplemental privilege log within 10 days of this order, as follows:

1.) A

separate entry for each document or redaction — not a batch description

2.) The

document's date

3.) The

author/sender, by name and capacity (e.g., in-house counsel, HR director, outside counsel)

4.) All

recipients, including everyone copied, by name and capacity

5.) The

document type (email, memo, investigation notes, etc.)

6.) A

subject-matter description specific enough to show why the privilege applies, without revealing the privileged content.

II.

Conclusion

& Order

Plaintiffs Nicholas Bockian and

Jackson Bockian's Motion to Compel Nonparty Kayla Ngai's Compliance with Deposition Subpoena for Production of Business Records is CONTINUED to October 16, 2026 at 9:00 a.m. in Department 512.

The Court orders that Responding party

provide a supplemental privilege log within 10 days of this order, as follows:

1.) A

separate entry for each document or redaction — not a batch description

2.) The

document's date

3.) The

author/sender, by name and capacity (e.g., in-house counsel, HR director,

outside counsel)

4.) All

recipients, including everyone copied, by name and capacity

5.) The

document type (email, memo, investigation notes, etc.)

6.) A

subject-matter description specific enough to show why the privilege applies, without revealing the privileged content.

Parties are to file a joint statement

no later than 5 court days before the next hearing date providing status report on any remaining items raised in the Motion that are in dispute.

Moving parties are ordered to give notice.